

INVITATION TO TENDER (ITT) / ENQUIRY

Tender shall be *submitted* Online through EPS portal in the link <https://eps.buyjunction.in/>

Sl No	Tender No	Name of Work	EMD amount (Rs)
1	T-27/25-26 Dt.24-01-2026	Transportation (Internal Transporting, Incoming / Outgoing) of Material by Manual / Using SRCL Crane / JCB for one year.	1,00,000/-

Date and Time of receipt of offers : Up to 11:00 Hrs on 14-02-2026

Date and Time of opening of offers : At 11:15 Hrs on 14-02-2026

Note: Tenderers should ensure that original documents pertaining to EMD (Demand Draft/ NEFT) should be submitted to purchase group dealing officer on or before due date & time, failing which their offer will not be opened at all. (If EMD exemption is availed, corresponding document shall be uploaded in the Part1 folder in EPS portal without fail.).

The tenderer shall obtain the tender documents by down loading from SAIL website www.sailtenders.co.in (Plant: SAIL REFRACTORY COMPANY LIMITED) on free of cost.

The tender documents complete in all respects along with EMD for **Rs.1,00,000/-** (separate DD) in favour of SAIL Refractory Company Limited, payable at Salem / NEFT (or) “Bid Securing Declaration”(Appendix- 1) shall be submitted online through our EPS portal.

Please quote your best rates as no further opportunity will be given for negotiation. Negotiation, if required, will be held only with the lowest quoted tenderer. Tenders received after the time and date specified above are liable for rejection.

GM (C, M&M)
SAIL Refractory Company Limited Salem,
Tamil Nadu -636302

TENDER DOCUMENT

“T-27/2025-26”

FOR

**Transportation (Internal Transporting, Incoming / Outgoing) of Material by
Manual / Using SRCL Crane / JCB for one year.**

SAIL Refractory Company Limited (SRCL)

Salem

INSTRUCTIONS TO BIDDERS

1. General:

- a) Submission of bid against this tender shall bind the bidder for acceptance of all the conditions specified herein or in the Invitation to Tender (ITT) / Enquiry unless otherwise agreed to by SAIL Refractory Company Limited (SRCL).
- b) The tenderer should furnish their previous experience certificate, if sought or, along with their offer.
- c) The tenderer (proprietor/ partner) must provide his telephone and/or cell phone number in the bid document for quick contacting.
- d) The tenderer must provide his full postal address in the bid document to which all communications could be addressed. SRCL will not be responsible for loss of any communications sent to such address.

2. Cost of bidding:

2.1 The bidder shall bear all costs associated with the preparation and submission of the bid. SRCL will in no case be responsible for these costs regardless of the conduct or outcome of the bidding.

3. Tender (Bid) document:

3.1. Tender (Bid) document includes –

- i) Invitation to Tender (ITT) / Enquiry
- ii) Instructions to Bidders (Annexure-1)
- iii) General Condition of Contract (GCC) for job contracts (Annexure-2)
- iv) Scope of Work and schedule of quantity (Annexure-3),
- v) Eligibility Criteria (Annexure-4)
- vi) Special Terms & Conditions of the Tender (Annexure-5)
- vii) “Format for undertaking to be uploaded / submitted by the authorized signatory of the bidder on its letterhead along with the tender documents” (Annexure-6)
- viii) ‘FORMAT FOR PRICE BID’ for **Part 3** Price quotation (Annexure-7). **PRICE BID TO BE UPLOADED IN THE PRICE BID FOLDER. SRCL RESERVE THE RIGHT TO CONDUCT RA FOR PRICE DETERMINATION THROUGH MJUNCTION.**
- ix) Bid Securing Declaration (Appendix-1)
- x) Format for Security Deposit Bank Guarantee (Appendix-2)

3.2 The bidder is requested to examine all instructions, form, terms and specification in the bid document. Failure to furnish all the information required as per bid document or submission of the bids not substantially responsive to the bid document in every respect will be at the bidder’s risk and may result in rejection of the bid.

3.3 In case of any conflict in meaning/ interpretation between clauses in the ‘Special Terms & Conditions of the Contract’ & the ‘General Conditions of Contract’, the ‘Special Terms

& Conditions of Contract' shall prevail.

For any other general terms and conditions please refer to SIL S1 which is applicable to all tenders and can be down loaded from website www.sailtenders.co.in

4. Amendments/ Corrigenda to bid document:

4.1 At any time, prior to the date of submission of bid SRCL may, for any reason, whether at its own initiative or in response to a clarification required by a prospective bidder, modify the bid documents by issue of Amendments or Corrigenda which will be published in SAIL Website only.

4.2 The Amendments/ Corrigenda shall be notified to all prospective bidders as Amendments/ Corrigenda to the tender and these Amendments/ Corrigenda will be binding on them.

5.0 Price Bid:

5.1 Please quote strictly in the '**FORMAT FOR PRICE BID**' enclosed at **Annexure-7** AND UPLOAD THE SAME IN THE PRICE BID FOLDER.

Note: This format to be uploaded only in the Item level page (Part 3- Price bid) and not in the Techno-commercial page. If prices are indicated in the techno-commercial bid, such offers are liable to be rejected.

5.2 **Price Variation Clause is not applicable.**

5.3 The price quoted must be your basic rate/ unit rate for each job element. All taxes, duties and levies -statutory or otherwise- must be entered separately in the column entry provided for this. Indicate both, the percentage and the amount of the various statutory & other such levies which will be applicable in addition to your quoted rates **separately** in the column entries provided for this. Please use the '**FORMAT FOR PRICE BID**' attached at **Annexure-7** for making these entries in the cells & columns provided for this, in the format.

5.4 SRCL RESERVES THE RIGHT TO CONDUCT RA FOR PRICE DETERMINATION THROUGH MJUNCTION (SRCL's service provider for determination of rates).

6. Documents to be submitted by the tenderer:

6.1 The bid prepared by the tenderer shall include the following documents:

6.2 **PART-1**: EMD furnished in accordance with clause 7.0 of Instruction to Bidders as mentioned below- **Part 1 Bid**

6.3 **PART-2**: Techno-Commercial Bid (**Part 2 Bid**) completed in accordance to the clauses contained in this Enquiry / ITT document. You are required to upload a copy of the:

- **Documentary proofs of the Eligibility Criteria**
- "Format for undertaking to be uploaded / submitted by the authorized signatory of the bidder on its letterhead along with the tender documents" (**Annexure-6**)
- **GST & PAN copies**

6.4 **PART-3: Price Bid (Part 3 BID)** Please quote strictly in the '**FORMAT FOR PRICE BID**' enclosed at **Annexure-7** and upload the same in the price bid folder.

Note: This format to be uploaded only in the Item level page (Part 3- Price bid) and not in the Techno-commercial page. If prices are indicated in the techno-commercial bid, such offers are liable to be rejected.

The **price bid shall remain valid for at least 90 days after the date of opening of tender.** A bid valid for shorter period shall be rejected by SRCL as non-responsive.

SRCL at its option may adopt to go through Reverse auction procedure conducted by M-Junction for determination/discovery of price/rate.

Note: The tenderer should strictly comply with all the clauses of this tender document.

7. Earnest Money Deposit (EMD) : Part 1 Bid

7.1 EMD: Part 1 Bid - Earnest Money Deposit for Rs.1,00,000/- may preferably be submitted in the form of online transfer - NEFT, RTGS, SWIFT. The proof of such transfer transaction needs to be uploaded in the Part-1 bid.. However, EMD will also be accepted in the form of demand draft, pay order, Banker's Cheque or Bank Guarantee (BG) from any Scheduled Commercial Bank except Co-operative, Gramin Bank, **Catholic Syrian Bank and United Western Bank** as per Proforma (**Appendix - 3**) provided in the tender document. The Bank Guarantee should be valid for 15 Months from the date of opening of tender. EMD will not be accepted in cash.

Micro & Small Enterprises (MSEs) / PSUs / Govt. Undertakings and Co-operative Societies/ Start-ups as recognized by Department of Industrial Policy & Promotion (DIPP) etc., are exempted from submission of EMD as per extant Government policy. For MSEs, the exemption will be extended on the basis of self-certified copy of Udyog Aadhar Memorandum (UAM) provided the concerned MSE is also registered in the MSME databank and MSE is registered for given scope of job/ procurement. SSI / NSIC certificate holders are also exempted from submitting EMD and should submit a copy of valid Entrepreneurs Memorandum, if available.

In place of EMD, Bidders may submit duly signed “Bid Securing declaration” accepting that if they withdraw or modify their Bids during the period of validity, or if they are awarded the contract and they fail to sign the contract, or to submit a performance security before the deadline defined in the request for bids document, they will be suspended for the period of one year from being eligible to submit Bids for contracts. A format for Bid Security Declaration is attached at **Appendix – 1**.

Note: *Techno-Commercial Bids (Bid-2) will be opened only those tenderers who have submitted valid **EMD** or proper documents for exemption*

Tender without EMD in the desired manner/amount is liable to be rejected.

7.2 EMD will be returned to the unsuccessful tenderers after finalization of the order. For successful tenderer, EMD shall be adjusted against Security Deposit.

7.3 The successful bidders' EMD will be discharged upon the bidder's acceptance of the **Contract awarded in accordance with clause 12.0 and furnishing of the Security Deposit.**

7.4 No interest is payable by SRCL for retention of EMD.

7.5 The EMD of unsuccessful bidder will be discharged / returned as early as possible but not later than 30 days after the expiry of the period of bid validity or placement of order, whichever is later

Forfeiture of EMD

The EMD will be forfeited if:

- a) The bidder withdraws his bid during the period of bid validity specified by the bidder in the tender.
- b) the successful bidder fails –
 - i) To sign the Contract/ furnish his Acceptance of the Order.
 - ii) To furnish a Performance Bank Guarantee Bond, if sought by SRCL, if in the opinion of SRCL the quoted rates are unjustifiably low
 - iii) To furnish the Security Deposit.

8.0 Format and signing the bid:

8.1 The bidder shall upload all the requisite documents in the EPS portal.

8.2. All the declarations shall be signed by the bidder or a person duly authorized to bind the bidder to the contract.

8.3. Any overwriting / corrections in the bid made by the bidder shall be signed by the person signing the bid.

9.0 Late / delayed submission of bid:

9.1. SRCL is not responsible for any delay for submission of tenders. **Any bid received after the due date and time for submission of bids shall be rejected.**

10.0 Bid opening:

10.1 The tenders will be opened on the intimated date & time of tender opening.

11.0 Evaluation:

11.1 SRCL shall evaluate the bids in two stages (**Part 2, Techno-commercial bid**) to determine whether they are complete in all respects and qualifying. Tenders without submission of EMD will be summarily be Rejected and no Techno commercial evaluation will be conducted for such offers.

11.2 The Price bid will be opened only after evaluation of **Techno – Commercial bid. Bidders who have qualified in Techno-Commercial bid will be intimated separately to participate in RA by MJ.**

11.3 Please study the document, the ‘Scope of Work/Contract’ & ‘*Special Terms & Conditions*’ documents carefully and then submit your bids accordingly. SRCL shall evaluate in detail and compare the technically acceptable/ substantially responsive bids and comparison of bids shall be on the price of the services offered inclusive of all levies and charges but considering the tax/ duty credits that can be availed of by SRCL (landed cost basis).

11.4 In case the price of technically & commercially suitable L-1 bidder is lower than lower limits of the departmental estimate, the bidder will be asked to justify the rates/ price quoted and total price. On refusal of the same or non-acceptance of the justification, the bidder will

be asked to furnish Performance Guarantee Bond (in addition to the Security Deposit) in the form of Bank Draft / Bank Guarantee (as per SRCL's proforma) equal to the amount which will be the difference between lower limit of departmental estimate and the quoted price of bidder and order will be placed on them after obtaining Performance Guarantee Bond as explained above. Earnest Money of the Bidders who refuse to give Performance Guarantee Bond under above mentioned condition will be forfeited and they will not be considered for Re-bidding, if order / contract is not finalized from the present bids. In case the party justifies the lower price as compared to the cost estimate and its explanation is found to be reasonable by the company, the company may accept the offer. However, if the party fails to explain the basis of their quoted price and the price is found to be un-reasonable, the package may be re-tendered.

11.5 SRCL reserves the right to adopt the services of M Junction for determination of rates through a sealed bid event and/or Reverse auction. The procedure for reverse auction is annexed in Annexure

12.0 Award of Contract and Liquidated Damages:

12.1 SRCL, shall consider those tenderers, whose offers have been found technically, commercially and financially acceptable, for award of contract.

12.2 The contract shall be signed in two originals, by the successful bidder with SRCL within 10 days of placement of LOI/ WO.

12.3 *The Contract duration shall be for 12 months* starting from the date of issue of the LOI/ W.O. / Contract. Option for quantity may be considered, based on SRCL's requirement at that time and satisfactory performance of the Contractor. However, the discretion as to this will lie solely with SAIL Refractory Company Limited only.

12.4 Time is the essence of the contract. **Liquidated Damages** not by way of penalty may be levied at the rate of 0.5% of the contract value for each week of delay subject to a maximum levy of 10% of the contract value.

13.0 Right to vary quantities:

13.1 The services of the contractor will be utilized as per the need/requirement of SRCL.

14.0 Signing of Contract & Security Deposit:

14.1 Signing of LOI/ W.O./ Agreement by the successful tenderer shall constitute the Award of Contract to the bidder. If required by SRCL, non-judicial stamp papers of appropriate value shall be purchased by the successful bidder for this purpose. The cost of Stamp Paper shall be borne by the Contractor/Supplier.

14.2 The sum to be paid by the Contractor will amount to 3 % of the Contract Value before he is allowed to execute the contract and commence work. Failure to deposit this amount within the stipulated time which shall include any additional time granted by the Employer at his discretion *will make the EMD submitted by the tenderer liable to forfeiture* and the Contract shall be considered withdrawn.

14.3 The successful tenderer shall be required to furnish a Security Deposit Bank Guarantee, on a non-judicial stamp paper of appropriate value as per SRCL's standard proforma, issued by a Nationalized/ Scheduled Commercial bank (except Co-operative or Gramin banks) equal to 3 % of the total Contract Value. This should be done within 30 days of award of Contract. If any extension of time is granted for the contract the validity of the Bank Guarantee should cover the period of the extension also.

14.4 In case the supplier/contractor delays submission of Security Deposit / Performance Guarantee, a penalty of 0.2% of the original SD / PG amount per completed day of delay, limited to an amount not exceeding 5% of the original SD / PG amount shall be applicable. Payment for executed portion of order/contract shall only commence on submission of requisite SD/PG.

14.5 The Security Deposit Bank Guarantee shall remain valid for the duration of the Contract plus three months. The Security Deposit will be discharged after completion of contractor's performance obligations under the contract.

14.6 If the contractor fails or neglects any of his obligations under the contract it shall be lawful for SRCL to enforce the forfeiture from the contractor of either the whole or part of the Security Deposit furnished by him as compensation for any loss resulting from such failure.

GENERAL CONDITIONS OF CONTRACT

1.0 GENERAL:

1.1 Order on one or more than one parties will be placed on the basis of L-1 quotation and, if required, negotiations will be held with L-1 tenderer only. However the tenderers may be required to explain/ justify the basis of their quoted price as when asked for. In case any tenderer fails to justify his quoted price or refuses to co-operate in this regard, they will not be considered for participating in the re-tendering if order/ contract is not finalized from the present tender.

1.2 If a tenderer quotes unworkable rates i.e. if the quoted price is less than the lower limit of the estimated price and is considered for placement of order, the party will be asked to justify the rate quoted and will have to give Performance Guarantee Bond (in addition to the Security Deposit) in the form of Bank Draft/ Bank Guarantee. The amount of Performance Guarantee Bond will be equal to the difference between lower limit of estimated price and the quoted price of the tenderer. EMD of the tenderers who refuse to give Performance Guarantee Bond may/will be forfeited and they will not be considered in re-tendering if order/ contract is not finalized from the present tender.

1.3 SRCL Technical Evaluation Team reserves the right to reject the offer from those tenderers whose performance in earlier contracts with SRCL was not satisfactory due to any reasons whatsoever. The decision of Technical Evaluation Team will be final and cannot be disputed by any tenderers. Technical Evaluation Team shall reject the offers from those tenderers who had backed out from the contract or refused to accept the contract or comply with Reverse Auction conducted by Mjunction / the terms and conditions of the tender.

2.0 SECURITY DEPOSIT:

2.1 The EMD of the successful tenderer shall be converted to Security Deposit.

2.2 The successful tenderer shall be required to furnish a Security Deposit in the mode of NEFT, RTGS, SWIFT or Bank Guarantee, on a non-judicial stamp paper of appropriate value as per SRCL's standard proforma, issued by a Nationalized/ Scheduled Commercial bank (except Co-operative or Gramin banks) equal to 3% of the total Contract Value. This should be done within 30 days of award of Contract.

2.3 In Case of Bank Guarantee as Security Deposit the Bank Guarantee period shall be 3 months more than the contract period.

3.0 OTHER REQUIREMENTS:

3.1 The Contractor has to possess the Permanent Account Number (PAN) issued by Income Tax Authorities and shall produce the same as & when sought/required by SRCL.

3.2 The Contractor has to possess PF registration issued by PF authorities and shall produce the details as & when sought/ required by SRCL.

3.3 The Contractor shall obtain license within one month from date of issue of Work Order and

same to be submitted to the Operating Authority.

3.4 The Contractor shall furnish from time to time the address to which all communications are to be made. The communications sent to the address of the Contractor shall be deemed to have been served and SRCL will not be responsible for non-delivery of letters posted to the said address.

3.5 Bank Mandate form duly signed by Banker.

4.0 COMPLIANCE WITH STATUTES & REGULATIONS INCLUDING LABOUR:

4.1 The Contractor shall engage only the required number of suitable contract workers depending upon the workload and nature of work.

4.2 The Contractor shall comply with the provisions of the Payment of Wages Act 1936, Minimum Wages Act 1948, Employer's Liability Act 1938, Workmen's Compensation Act 1923, Industrial Disputes Act 1947, Maternity Benefit Act 1961, Mines Act 1952, Factories Act 1948 and Contract Labour (Regulation & Abolition) Act 1970, or any modifications thereof or any other labour & other applicable laws relating thereto and rules made there under from time to time.

4.3 The Contractor shall be required to register himself with the Regional Provident Fund Commissioner (RPFC) as per the regulations in force. He shall be liable to make all payments under the Employees' Provident Fund and Family Pension Fund Act 1952 and the scheme framed thereunder from time to time.

4.4 The Contractor shall obtain license from the appropriate authority under the provisions of Contract Labour (Regulation & Abolition) Act 1970 as amended from time to time and the rules made there under and shall produce the same when sought by SRCL, failing which the award of work may be cancelled and the Earnest Money deposited by the Contractor will stand forfeited to SRCL. .

4.5 The Contractor shall maintain all the necessary Registers, Records, etc., as required under the various Acts and Regulations applicable to the Factory including safety aspects and produce the same for inspection as & when required by the Statutory authorities.

4.6 In all other cases, the Contractor shall pay the wages payable in respect of the contract labour engaged by him through the banks only and not by payment of cash directly. The Contractor shall enclose a certified copy from the banks and submit the same to the concerned Contracting department in SRCL as a proof of having remitted the wages to the bank accounts of the respective contract labour deployed by him in SRCL. In the absence or non-furnishing of the documentary evidence from the banks to the concerned Contracting departments, no further payments shall be released/ recommended to the Contractor by the Operating Authority/ Executing Officer of the Contract.

5.0 ISSUE OF IDENTITY BADGES AND UN-AUTHORIZED ENTRY:

5.1 SRCL shall issue identity badges with photographs to the workers employed in SRCL as required under the Factory Regulations.

5.2 The Contractor shall abide by all the security regulations promulgated from time to time by SRCL. In order to facilitate the issue of entry passes by SRCL to the labourers as well as the

contractor and his staff for executing the work under this work order, the contractor shall submit to the Operating Authority/ Executing Officer of the Contract a list together with photographs if needed, of the persons who are to be allowed inside the SRCL.

5.3 In case any of the contract workers are removed from the job, leave job due to resignation or any other reason, the Contractor should get back their identity badges with photographs and deposit the same with SRCL/Security I/c.

5.4 The Contractor should not allow any un-authorized persons to work on the contract work failing which appropriate action will be taken against the Contractor and also against such person for having entered the works premises un-authorized.

6.0 DISCIPLINE:

6.1 If any worker misbehaves with the Employees of SRCL, the Contractor will have to take necessary actions as situation warrants as per the provisions under various statutes in vogue.

6.2 Consumption and/or sale of alcohol/ spirits or other intoxicating beverages at work, work site or in any of the buildings, encampments or tenements owned, occupied by or within the control of the contractor or any of his employee shall be forbidden and the Contractor shall exercise his influence and authority to the utmost extent to secure strict compliance with this condition.

6.3 The Contractor shall take requisite precautions and use his best endeavour to prevent any riotous or unlawful behavior by or amongst his workmen and others employed on the works and for the preservation of peace and protection of the inhabitants and security of property in the neighborhood of the work.

7.0 EXECUTION OF WORK:

7.1 If the Contractor fails to commence work from the date specified in the Letter of Intent/Work Order/ Contract, any extra expenditure incurred in getting the work done by the Company or through any other agency during such period, will be recovered from the Contractor.

7.2 The work is to be carried out in accordance with the W.O. / Contract, relevant Indian Standard Specifications/ BIS and codes of practice/CPWD standard specifications. In the absence of any such specifications and codes, the work is to be carried out in accordance with the specifications and instructions given by the Operating Authority/ Executing Officer of the Contract from time to time during the course of execution of the work which will be binding on the contractor.

7.3 The quantities tendered are only approximate and cannot be guaranteed. The quantities may be increased or decreased according to the requirement of the Job Work.

7.4 In such cases SRCL reserves the right to increase /decrease the contracted quantity volume with advance intimation without any change in the contracted rates agreed. However, increased quantities, if any agreed, will be billed at the L1 rate obtained in the tender for that job element/slab.

7.5 The Contractor should supply necessary and sufficient tools to the workers as and when required during the contract period and the Contractor should get declared their personal properties

like tools and other belongings in the Register maintained at the Main Gate of SRCL.

7.6 The Contract shall not be sub-contracted without prior permission from SRCL.

7.7 The work place should be kept neat and tidy.

8.0 MATERIALS USED IN THE CONTRACT:

8.1 The materials supplied by SRCL in accordance with these conditions are for the exclusive use on the main works covered by the work order. The contractor has to make his own arrangements for the materials required for his temporary/enabling works. Taking delivery from these locations, transporting including loading into and unloading from the transport vehicles, storage and other handling of the materials from the places of delivery until these materials are incorporated in the works shall be arranged by the contractor and the cost thereof shall be deemed to have been included in the contract rates. No claim or compensation shall be admitted for any delay in supply or non-supply or short supply of the above materials.

8.2 Price variation clause shall not be applicable for steel materials issued on free issue basis.

9.0 MEASUREMENTS AND PAYMENT:

9.1 The quantities indicated in the Scope of Work schedule are approximate. Payments shall be made on actual measurements. No change in the unit rate will be admissible for any variation in quantities except in so far as the increased quantities, if any agreed, will be billed at the lowest rate in the tender (L1 rate) for that job element/ slab.

9.2 The contractor will be paid for the work at the accepted rate based on the measurements and bill raised by the contractor.

9.3 Failing the Contractor's attendance, the work may be measured by the Operating Authority/ Executing Officer of the Contract in the absence of the contractor and such measurements notwithstanding such absence of the Contractor shall be binding on the contractor whether or not he shall have signed the Measurement Book.

9.4 The contractor shall not carryout any extra item of work unless authorized to do so in writing by the Executing Officer/ Operating Authority of the Contract.

9.5 Bills will be prepared and generally paid once a month after tallying with the work completed as per the Measurement Book and certified by the Operating Authority/ Executing Officer for the Contract.

9.6 Final payment shall be made after the work has been satisfactorily completed. Based on the measurement at the accepted rates, the final bill will be raised by the contractor.

9.7 In the event of any contractor failing to pay wages to his workers by due date of 10th of successive month (in the event 10th falls on holiday, the next day will be the payment day) SRCL may pay the same and recover it from the Bills / SD together with a Penalty @20% of the bill value (excluding GST) for the default wages payment to the workers

10.0 RECOVERIES/REFUND:

10.1 Every month, deductions would be made from the bills of Contractor, towards Income Tax as per the Income Tax rules and also any other Statutory Levies as may be applicable from time to time.

10.2 The Company will refund the Earnest Money Deposit/ Security Deposit after satisfactory completion of the Contract.

10.3 Any dues to the company from the Contractor shall be adjusted from the last and final bill of the Contractor. The final bill shall be released only after recovery of all dues.

10.4 The Operating Authority/Executing Officer of the contract for SRCL, shall endorse the final bill as 'FINAL BILL' for effecting deduction and send it to Finance & Accounts Dept of SRCL along with 'checklist' of the completed job contract vis-a-vis contracted specifications, terms & conditions and the final acceptance certificate (FAC) to effect payment.

10.5 Deductions, if any, for any period of time during the validity of the contract or thereafter can be effected from the bills of the Contractor for reasons which shall be informed to the Contractor.

11.0 SAFETY:

11.1 The contractor shall take clearance from the Safety Engineering Department of SRCL before starting the work and shall give an undertaking to the Safety Engineering Department of SRCL that he will strictly adhere to the procedure of Safety Engineering Department before starting the work.

11.2 The contractor shall take adequate safety precautions for prevention of accidents at site. The contractor shall also ensure that his employees observe the statutory safety rules and regulations and also those laid down by SRCL from time to time and promptly submit the reports of accidents and state measures taken by him to prevent their recurrence and keep SRCL indemnified of all claims arising out of such accidents.

11.3 Provision and use of appropriate Safety and PPEs pertaining to the job and area of working by the Contract workmen is to be ensured by the successful contractor.

11.4 Depending upon the nature of work and likely hazard, the Contractor should supply appropriate safety appliances as per the Factories Act and Rules thereunder and failure to comply with the safety Regulations as contemplated under the law may end in stoppage of work and/or levy of fine depending upon the gravity of violation at the discretion of the Management.

11.5 In the event of failure by the Contractor to provide PPEs as outlined above, the same shall be provided by SRCL and the cost recovered from the bills of the Contractor.

11.6 Prior to setting fire to the dry bushes, grass etc. collected, permission shall be obtained by the contractor from the Operating Authority/ Executing Officer for the Contract and Safety Engineering Department of SRCL. All precautions are to be taken by the contractor at his cost in preventing the fire spreading to the adjoining areas and causing damage to structures /properties etc. existing in those areas.

12.0 MEDICAL:

12.1 The successful contractor must ensure that all his workmen engaged in the job/ contract have undergone pre-employment medical checkup.

12.2 Whenever the contract workers sustain injury due to accidents while on duty, the Contractor shall be liable for providing Medical Treatment at his cost to the injured Contract labour and SRCL will have no responsibility for the same.

13.0 ACCIDENT COMPENSATION AND STATUTORY BENEFITS:

13.1 In the event of any accident to any of the employees under him, it shall be the responsibility of the Contractor to pay the statutory compensation under the relevant acts and rules thereof.

13.2 Any compensation resulting from accident shall be to the account of the Contractor.

13.3 The contractor shall maintain such insurance from companies satisfactory to SRCL as will protect SRCL from claims under the Workmen's Compensation Act and from any other claims for damage for personal injury, including death which may arise from operations under this contract whether such operations be by himself or by any sub-contractor or anyone directly or indirectly employed by either of them.

13.4 The Contractor shall obtain necessary Accident Risk Insurance Policies in respect of workers employed by them to cover all accidents while on duty (as per Statutes/ Labour Laws) resulting in temporary or permanent partial/ total disablement or death for the tenure of the contract and produce the same to the concerned Manager for scrutiny and return. The Contractor has to obtain such policies for any new worker employed by them subsequently. And in the event of any accident or death, it is the responsibility of the Contractor to claim the compensation from the Insurance Companies on behalf of their employees.

14.0 PENALTIES:

14.1 If the Contractor fails to execute the contract or to abide by the terms specified at any time during the tenure of the contract, or if the Management has any reason to believe that the interests of the SRCL are thereby affected in any way, SRCL will issue a show-cause notice in this respect to the Contractor, the reply to which must reach SRCL within 7 working days of the date of issue of the show-cause notice. If the reply to the show-cause notice furnished by the Contractor is unsatisfactory, SRCL at its discretion may determine to levy a suitable penalty or arrange for the work being done through any other agency and/or departmentally, in which case, the Contractor shall forfeit the Security Deposit and the Contractor shall make good to SRCL any loss by way of extra expenditure etc., which has arisen as a consequence.

14.2 SRCL may also at its discretion suspend or stop business relationship with the Contractor and /or business relationship with any firm with which its employee or any director is associated with.

14.3 If the contract workers cause any damage to SRCL properties, the cost towards that will be recovered from the bills of the concerned Contractor or forfeited from the Security Deposit.

14.4 *In the event of any contractor failing to pay wages to his workers by due date of 10th of*

successive month (in the event 10th falls on holiday, the next day will be the payment day) SRCL may pay the same and recover it from the Bills / SD together with a Penalty @20% of the bill value (excluding GST) for the default wages payment to the workers.

15.0 RISK NOTICE:

15.1 For Job Contract cases, notice for execution of order on risk & cost of any contractor can be issued during valid period of contract also if contractor either fails to start the work within reasonable time, the progress of the job is poor or for any breach of contract.

15.2 In such a case, SRCL shall be entitled (a) to forfeit the whole or such portion of the Security Deposit as it may be considered fit and (b) to re-tender and / or recover from the contractor the cost of carrying out the balance work and such excess sums which becomes payable by SRCL over & above the rates of work had it been carried out by the contractor under the terms of the work order.

16.0 TERMINATION AND EXTENSION OF CONTRACT:

16.1 It shall be clearly understood that the contract awarded to the successful tenderer shall automatically stand terminated on the expiry of the contract period, unless the Management orders extension of the contract for a further period. If extended, it shall be without escalation. The Contractor shall carry out the works as per the terms and conditions of award during the extended period also.

16.2 SRCL reserves the right to terminate the contract at any time before the expiry of the term of this contract without assigning any reason, by giving one month's notice in writing.

16.3 Failure of the successful bidder to comply with the requirement of the GCC for Job Contracts of SRCL and other W.O. / Contract clauses shall constitute sufficient ground for the Annulment of the Contract and forfeiture of EMD/ Security Deposit, in which event SRCL may at its discretion award the Contract to any other bidder or call for new bids.

17.0 FORCE MAJEURE:

17.1 Nothing in this context shall be construed as a failure or breach of contract either on the part of SRCL or the Contractor, if either of them or both are prevented from discharging their obligations under this contract by reasons of arrests, restraints by Government, blockades, revolutions, insurrections, mobilizations, civil commotions, riots, accidents, destructions of properties / assets by fire, flood, tempest, earthquake or any other natural calamities or due to unforeseen circumstances such as shortage of fuel & power, raw materials, accumulation of stocks, breakdown of machinery or on account of any other cause or causes beyond the control of the parties to the contract.

17.2 On the occurrence of any of the force majeure conditions, as referred to above, the Contractor concerned shall notify SRCL in writing of such occurrence as soon as possible, but within 48 hours of the occurrence stating therein:

- The nature of such force majeure condition
- The date of commencement of such force majeure condition, AND
- The anticipated duration of such force majeure condition (if such duration can be estimated).

17.3 The disabled party/ Contractor and the remaining party/Contractor shall employ all reasonable means to reduce the consequence of such force majeure disability and shall employ all reasonable means to terminate the same.

18.0 ABIDING BY THE DECISION OF COURT, ETC:-

18.1 The Contractor shall abide by the decisions/ recommendations/ awards by the courts/ labour/ industrial tribunal/ wage board or commissions appointed by the appropriate government in respect of the provisions of the decisions/awards/recommendations from time to time and maintain such relevant records and registers as are required to be maintained under these legislations/-awards/decisions and produce the same before the Officers of the employer and other statutory authorities as and when required.

19.0 RESOLUTION OF DISPUTES:

19.1 CONCILIATION:

19.1.1 Any dispute or difference whatsoever arising between the parties relating to or arising out of contract shall be settled first by conciliation in accordance with the Rules of Conciliation of SCOPE and the settlement so rendered between the parties in pursuance thereof shall be binding on the parties.

19.2 ARBITRATION:

19.2.1 In the event the dispute/difference is not resolved through conciliation in accordance with the Rules of Conciliation of SCOPE, the matter shall be referred for a decision to a Sole Arbitrator to be appointed by the C.O.O.of the Company. The C.O.O. of the Company shall notify to the Contractor/ Purchaser three names out of which one can be appointed as the Sole Arbitrator with the consent of both the parties. In case the other party /ies do not agree to the appointment of the Sole Arbitrator to be appointed by the C .O.O. it will be substituted by the Arbitration Clause.

19.3 Any dispute or difference whatsoever arising between the parties and/ of/ or relating to the construction, interpretation, application, meaning, scope, operation or effect of this contract or the validity or the breach thereof, shall be settled by Arbitration in accordance with the Rules of Arbitration of SCOPE and the award made in pursuance thereof shall be final and binding on the parties.

19.4 Accepted matters as per the contract shall not be the subject matter of Conciliation/Arbitration.

19.5 Work/ supply under the contract shall be continued by the Contractor/Supplier under the contract pending Conciliation/ Arbitration proceedings and recourse to Conciliation/Arbitration shall not become a bar to continuing with the contracted work/supply.

19.6 The venue of Conciliation /Arbitration shall be Salem (Tamil Nadu).

19.7 The Courts at Salem alone shall have jurisdiction over all matter of disputes arising out of the contract to the exclusion of all other courts.

SPECIAL TERMS AND CONDITION:-

SCOPE OF WORK: For Transportation of materials within factory covering 1 KM distance using tractor with trailer, Manual loading & unloading of materials to/from by tractor with trailer & Stacking and incoming and outgoing of all types of SRCL materials from / to trucks by Manual loading / unloading and by using SRCL Crane/JCB.

SL. No.	ITEMS CODE	DESCRIPTION	REQUIRED QUANTITY IN MT
1	PS040101101	Transporting of all kinds of SRCL materials within factory covering 1KM distance using Tractor with trailer on Tonnage basis	14300
2	PS050101130	Manual loading of all kinds of SRCL materials (Lumps/spoils/waste/ bags / Scraps / raw material etc.) in to tractor trailer on Tonnage basis	14300
3	PS050101131	Manual Unloading & Stacking of SRCL materials from tractor trailer on Tonnage basis	11700
4	PS050101132	"MANUAL" Loading/Unloading of all incoming materials and all Outgoing materials on tonnage basis inclusive of Monolithic finished products and except dispatch of finished bricks to / from factory as and when required.	1980
5	PS050101133	"BY USING OF SRCL CRANE/JCB" Loading / Unloading of all incoming materials and all outgoing materials on tonnage basis inclusive of Monolithic finished products (Jumbo Bags) to / from factory as and when required.	13000

Contract Period: One Year

Name:

Signature of the tenderer with Seal

Address:

Telephone Number

Date: -

ELIGIBILITY CRITERIA

Financial Eligibility Criteria

1. Average annual financial turnover of the bidder for last 3(three) years ending 31st March 2025 should be at least **Rs.16,58,101/-**.
2. In support of the financial turnover, the turnover certificate /audited profit and loss account statement.
3. Turnover shall be submitted exclusive of GST.
4. P & L statement should be in the name of Participating tenderer.
5. Financial documents issues by CA must contain unique document identification Number (UDIN) and membership number of CA.

Technical Eligibility Criteria

1. Experience of having successfully completed or substantially completed similar work by the bidder during last seven years ending 31st December 2025 should be either of the following:-
 - a) Three similar completed works each of which contains “**Similar Works**” as specified under, costing not less than the amount equal to **Rs.22,10,802/-**.
OR
 - b) Two similar completed works each of which contains “**Similar Works**” as specified under, costing not less than the amount equal to **Rs.27,63,502/-**.
OR
 - c) One similar completed work each of which contains “**Similar Works**” as specified under, costing not less than the amount equal to **Rs.44,21,603/-**.
2. “**Similar Works**” mentioned above is defined as: “**Contracts related to Operations**” in any refractory manufacturing units or “**Contracts related to refractory**” in Steel Plants. The tractor with trailer with a carrying capacity of minimum 5 MT (Five) and should have been purchased after 01-04-2015 only permitted. Tenderer should own the tractor with trailer or alternatively there must be a valid contract agreement for one tractor hiring for a period of minimum one year. Agreement shall not be reflecting the same Registration Number of vehicle to the other tenderer. If so, vehicle agreement will be treated as rejected. The one tractor shall have valid RC, insurance, Permit, etc. as per motor vehicle Act. A self-attested photocopy of the documents should be attached along with tender documents
3. Tenderer should submit the experience of similar works completed in Central/State Govt. Organizations/PSUs/Joint Venture Company where at least one of the partners shall be central or state government Organization of PSU/Public Limited Companies.
4. Tenderer should submit the self-attested copies of work orders.
5. Tenderer should submit self-attested copies of Completion certificate (issued by the concerned work executing authority etc.)

Name:

Signature of the tenderer with Seal

Address:

Telephone Number

Date: -

For Transportation of materials within factory covering 1 KM distance using tractors with trailer, manual loading & unloading of materials to/from tractor with trailer & Stacking and incoming and outgoing of all types of SRCL materials from / to trucks by manual loading / unloading and by using SRCL Cranes/JCB.

- 1) As applicable to contractors like PF Code, ESI Code, Labour License shall be applicable to the tenderer. And contractor shall abide by all statutory requirements in vogue during the operation of contract.
- 2) The contractor shall arrange one tractor with trailer (with hydraulic tipping / lifting arrangement) and sufficient number of resource for Transporting /Loading/Unloading of SRCL materials as and when required basis for the period of one year. The tractor with trailer should have carrying capacity of minimum 5MT. The tractor should have valid RC, insurance, Permit etc. as per motor vehicle act. The rates should be quoted on tonnage basis.
- 3) For performing (For Sl no: 4 item Code PS 050101132) Manual loading / unloading of outgoing and incoming materials on tonnage and for performing (Sl no: 5 item Code PS 050101133) "By using of SRCL Crane/JCB" Loading / Unloading of incoming and outgoing materials on tonnage basis inclusive of Monolithic finished products to / from factory as and when required. The contractor shall keep sufficient manpower for loading / un-loading of SRCL materials by manual (or) SRCL Crane/JCB as and when required basis for the period of one year. To execute the contract, the contractor shall deploy minimum six manpower per day. If fails, penalty at the rate of Rs.1000-/ per day will be imposed. No Penalty will be imposed for unavailability of work by SRCL.
- 4) For Containers/Trucks loading / un-loading SRCL will provide Crane/JCB facilities on free of cost and the contractor has to provide required ropes / Belt for un-loading / loading of SRCL materials.
- 5) Working hours is preferably between 6.00 AM to 6.00 PM. If required working hours can be extended up to completion of the job.
- 6) As and when required basis the contractor shall also arrange tractor without worker for transport of SRCL materials while loading done by SRCL JCB. If required contractor has to provide tractor with trailer and man power (Tractor Driver) until completion of the work as per Executive Officer(s) instructions.
- 7) The tractor shall be equipped with all safety related systems, equipment and mechanism. The worker should comply with all safety measures as per safety rules and rules of SRCL. The contractor has to abide by the rules and regulations of SRCL and will be bound by all relevant laws applicable for this contract.
- 8) The safety and security of the tractor is contractor's responsibility and contractor has to carry out the jobs as per the norms, rules and regulations of the factory act & SRCL rules as framed by time to time.
- 9) Driver employed by the contractor shall have proper valid driving license. The safety of worker is contractor's responsibility. SRCL is no way liable for any compensation in the event of any accident etc.

- 10) No Price Variation clause (PVC) applicable. Sub-contract is not permitted without the specific approval of competent Authority.
- 11) L-1 will be decided on total composite value on LCNC basis. No order distributions.
- 12) SRCL reserves right to terminate the contract by giving one month notice for non- performance of the contractual terms if any. The contractor can also terminated the contract by giving three month notice if they find the contract is unworkable due to steep increase in minimum wages, diesel price or any other valid reasons which are justifiable with facts.
- 13) The work shall be supervised on daily basis by the contractor himself or by any other responsible Person authorized by him in writing. Contractor has to provide printed trip sheet book as per SRCL requirements. Attendance will be verified from Bio-metric register / Factory main gate register.
- 14) The successful contractor must ensure that all his workmen engaged in the Contract have undergone Pre-Medical Check-up from the approved TN Govt. Medical Officer and same has to be certified by the SRCL Medical Officer prior to starting of the contract. The pre-medical examination cost to be borne by the successful tenderer.
- 15) The successful tenderer should provide:
- i. Two sets of unstitched service dresses and stitching charges extra (on annual basis) to all the workmen
 - ii. Two set of Sarees with blouse materials in case of female workers.
 - iii. Gingelly Oil - 1 liter every two months,
 - iv. Hand washing Soap – One full bar (500gms) once in every two months
 - v. Hand Kerchief – 4 nos. yearly,
 - vi. Safety gloves – 1 Pair and goggles every month or need basis,
 - vii. Safety Face Mask - 4 Nos. per month Or need basis
 - viii. Safety Shoes (1 pair) ,
 - ix. Safety Helmet (1 No.) per year (BIS standard)
 - x. Any other PPE specific to their area of work
- 16) On noncompliance of the above, 10 % of the bill value will be deducted every month and kept with the company. The same shall be refunded on producing documentary evidence as proof of compliance.
- 17) Payment would be made to the tenderer within 30 days of duly verified bills and submitted to the Finance Department. The tenderer should submit his monthly bill for payment after payment of wages to their employees and remittance of PF & ESI. The bill should be enclosed with the proof of having paid the wages to their employees, payment of PF & ESI and monthly attendance of their employees, duly certified by the OA.
- 18) All payments due to be made on account of Provident Fund 1952, Pension Fund etc., should be paid by the Successful tenderer for the workmen engaged under him. For this purpose the successful tenderer should obtain PF account number for all employees working under him from PF Authorities and should maintain the account subject to the conditions in force from time to time as insisted by the provident fund authorities.
- 19) All payments due to be made on account of Employees State Insurance Act,1948 should be paid by the Successful tenderer for the workmen engaged under him. For this purpose the

successful tenderer should obtain ESI number for all employees working under him from ESI Authorities and should maintain the account subject to the conditions in force from time to time as insisted by the ESI authorities

- 20) The contractor should engage contract workers and they should be paid daily wages which is not less than the wages as per the Minimum Wages Act, 1948, from time to time issued by RLC (Central) and the payment should be made on or before the specified date under the Payment of Wages Act 1936/Minimum Wages Act, 1948.
- 21) **Penalty:** In case of any production loss due to the contractor, the contractor shall pay a penalty of Rs.2000 per day. They shall invariably obey/co-ordinate with our operating / executing authority.
- 22) Canteen facilities can be availed for the contractual labours of the successful tenderer.
- 23) Rates quoted are FIRM for the contract period except Govt. Levies.
- 24) Tenderer are required to quote their rate PER MT against each job in the price bid only.
- 25) Other general terms and conditions as applicable to contractors like PF Code, ESI Code; Labor license shall be applicable to the tenderer. And contractor shall abide by all statutory requirements in vogue during the operation of contract.
- 26) Payment will be made based on the registers / records maintained by SRCL.
- 27) Up on submission of bill to finance, the payment to the tenderer shall be released within 30 days.
- 28) If the contractor fails to pay the wages to the employees on or before 10th of the succeeding month (in the event where 10th falls on holiday, the next working day will be the payment day), he will be imposed a fine of Rs.5000/- per day for every day of delay after 10th of the month subject to a maximum of Rs.15, 000/- for each month.
- 29) In the event of any contractor failing to pay wages to his workers by due date of 10th of successive month (in the event 10th falls on holiday, the next day will be the payment day) SRCL may pay the same and recover it from the Bills/SD together with a Penalty @20% of the bill value (excluding GST) for the default wages payment to the workers
- 30) The successful tenderer shall comply with the provisions of all statutory laws, Rules & Regulations in force from time to time including the provisions of Contract Labour (Regulation& Abolition) Act, PF, ESI, Bonus Acts/rules etc.
- 31) Workmen compensation policy for the employees who does not fall under ESI shall be ensured by the successful tenderer.
- 32) The successful tenderer shall, at his own cost, take necessary insurance cover, in respect of the Workmen to be employed/engaged by the contractor.
- 33) If the company incurs any liability by way of damage or loss to company property etc., due to any lapse on the part of the successful tenderer, the same will be recovered by the company from the successful tenderer's bill, which shall be decided by the Operating Authority.

- 34) If the successful tenderer incurs any liability to his workmen or to any other party, the same shall be discharged by the successful tenderer himself which will include Retrenchment Compensation if any payable under the Industrial Disputes Act, 1947 and SRCL will in no way be responsible for any such liability.
- 35) The contractor shall maintain good housekeeping at the work site for safe working.
- 36) Deductions to be made from the bills will include the following :
- i) Tax deduction at source at the rates applicable will be deducted from the bills of the successful tenderer and TDS certificate will be issued for such deductions made.
 - ii) An amount equal to 8.33% of gross wages will be withheld from the running bills of the tenderer and shall be refunded on submission of proof of payment of bonus.
- 37) Deductions to be made from the bills will include the following:
- i) The successful tenderer should ensure remittance of PF and ESI contributions within the stipulated time maintain such records /registers and file such returns as required under PF and ESI Act.
 - ii) The successful tenderer should maintain all records and registers required to be maintained under various Laws and also should submit such returns/reports required to be submitted to the concerned authorities under various laws.
- 38) Safety:
- i) The safety appliances and PPEs required for the above activities are to be used strictly and are to be borne by the contractor.
 - ii) The contractor has to strictly undergo a safety briefing by Safety Engineering Department on safe working, safe handling of bags, placing the materials at the required places. These briefings are to be strictly adhered for the safety working of the labourer.
 - iii) The labourers have to strictly follow the instructions given during safety briefing in handling the materials/bags while loading / un-loading.
 - iv) All the labourers should wear necessary PPE like safety helmets, hand gloves, goggles, safety shoes & mask, Safety helmet, etc., and has to follow safety instructions given by the safety department and the executing officer strictly and any violation in adhering to the above will be viewed seriously. And, a PENALTY of Rs.500/- will be imposed for violation of safety measures in each instance.
- 39) Period of Contract: The contract is valid for a period of One Year (12 months). However if required, SRCL reserves the right to either extend the contract period or Short close the contract (with one month notice).
- 40) QVC: Based on the requirement, SRCL reserves the right to increase or decrease the tendered quantity +/-25% if necessary.
- 41) The quantity mentioned Scope of work and Schedule quantity (Sl. No. 1 to 5) in Annexure – “3” is indicative and it may vary within the financial limit of the contract.
- 42) Final settlement/payment of monthly bills to the successful tenderer including refund of security deposit will be made only after all the dues to the company, employees and statutory authorities are cleared by the successful tenderer and proof of the same to be produced to the

company officials, except amount withheld for bonus which shall be repaid after payment of bonus to the employees

43) The Executing authority (EA): AGM (Production) & Operating Authority (OA): GM (Works & Maintenance)

44) The tender does not envisage distribution of order quantity and hence the tenderer is requested to quote best rates since negotiation, if any required, to be held will be on L1 tenderer only. The L1 will be decided on the Total composite value on LCNC basis.

45) GST Registration, PAN card Xerox copy and Bank details duly signed by the Bank are to be enclosed.

I/We hereby agree to the above terms and conditions.

Name:

Signature of the tenderer with Seal

Address:

Telephone Number

Date: -

FORMAT FOR UNDERTAKING TO BE UPLOADED / SUBMITTED BY THE AUTHORIZED SIGNATORY OF THE BIDDER ON ITS LETTERHEAD ALONG WITH THE TENDER DOCUMENTS

I (Name and Designation) duly authorized to sign the bid for and on behalf of M/s (herein after called the bidder) for the purpose of Tender No..... of (SRCL, SALEM), do hereby solemnly affirm and state, on the behalf of the bidder including its constituents, as under:

I/We have read the contents of the above mentioned tender carefully and understand that my/ our offer will be evaluated based on the documents/ credentials submitted along with the offer and same shall be binding upon me/us. I/We undertake and warrant that in relation to the aforesaid tender, our bid was developed genuinely, independently and made with the intention to accept the Contract, if awarded.

1. BID SECURING DECLARATION:

I/ We agree that if I/We withdraw or modify our Bid during the period of validity, or if I / We are awarded the contract and I/ We fail to sign the contract, or to submit a performance security before the deadline defined in the request for bids document, I/We will be liable to be suspended for a period of six months from being eligible to submit bids against all future tenders of SRCL, SALEM

2. UNDERTAKING FOR NON-COLLUSIVE TENDERING:

I/We undertake and warrant that our bid was not prepared with any agreement, arrangement, communication, understanding, promise of undertaking with any person (including any other bidder or competitor) regarding i)prices; ii) methods, factors or formulas used to calculate prices; iii)an intention or decision to submit a bid; iv)an intention or decision to withdraw a bid; v)the submission of bid that does not conform with the requirements of the tender; vi)the quality, quantity, specifications or delivery particulars of the products or services to which this tender relates; and vii) the terms of the bid, and we also undertake that we will not, prior to the award of the Contract, enter into or engage in any of the foregoing.

3. SUB-CONTRACTING, WHEREVER APPLICABLE:

Disclosure in case of Job/ Project Contracts: I/We warrant that we have duly disclosed and will continue to disclose all intended sub-contracting arrangements relating to the Tender that we are required to disclose, including those which are entered into after the Contract is awarded.

4. AUTHENTICITY OF DOCUMENTS SUBMITTED FOR BID EVALUATION:

I/We declare that the information and documents submitted along with the tender documents by me/ us are complete and correct and I/we are fully responsible for the authenticity and correctness of the submitted information and documents. I/We declare and certify that I/we have not made any misleading or false representation anywhere in the tender submitted including the annexures thereto.

I/We understand that at any time during process of evaluation of tender or at any time after award of contract, if any information / document submitted by me / us are found to be suppressing facts / forged / false / fabricated / fudged or incorrect, it shall lead to forfeiture of the EMD/SD and

Performance Guarantee, if submitted, besides any other action provided in the contract including banning under the extant Guidelines for Banning of Business Dealings of SAIL and initiating any legal action as deemed fit. Further, I/we and all my/ our constituents understand that my/ our offer shall be summarily rejected.

5. REPRESENTATION OF SINGLE / MULTIPLE FIRMS BY THE AUTHORIZED PERSON:

I/We hereby declare that I/we are not representing any other firm participating against this tender. OR

I/We hereby declare that I/we also represent the following firm(s) participating against this tender:-

Sl No.	Name of the firm
1.	
2.	

6. RELATIONSHIP WITH ANY EMPLOYEE WORKING IN PLANT/ UNIT CONCERNED OR DIRECTORS OF SAIL INCLUDING ITS SUBSIDIARIES:

a) I/We hereby declare that the Proprietor or any Partner of the Company or Director of our company has no relationship (within the meaning of Section-2 (77) of the Companies Act 2013) with any employee working in SRCL, SALEM /any of the Directors of SRCL, SALEM.

OR

I/We hereby declare that the following Proprietor/Partner/Director of our company (has relationship (within the meaning of Section-2 (77) of the Companies Act 2013) with following employee working in SRCL, SALEM Directors of SRCL:-

Name of Proprietor/ Partner/ Director of our company Name of SRCL employee/

Name of Proprietor/ Partner/ Director of our company	Name of SRCL/ Director of SRCL	Type of relationship
1.		
2.		

(Strike-off the portion which is not applicable)

b) I/We further declare that if the contract is awarded to me/us, I/we shall inform if any of my/our relative(s) as defined above, join/joins the SRCL or joins as Director of SRCL including its subsidiaries at any time subsequent to the award and during continuance of the contract.

7. ANTI BRIBERY MANAGEMENT SYSTEM (ABMS) DECLARATION:

I/We undertake that we shall not give or take any financial or non- financial bribe, to or from any one during the tender or during the execution of the contract thereafter and if I/We notice any such incident happening, I/We shall report to SAIL Vigilance.

8. MINIMUM LOCAL CONTENT AS APPLICABLE & LAND BORDER SHARING REQUIREMENTS, IF APPLICABLE

I/ We declare that I/We comply with the provisions of the revised Public Procurement (Preference to Make In India), Order 2017 dated 16.09.2020, as amended from time to time and also comply with the provisions of DoE Order dated 23.07.2020 with respect to the compliance related to land border sharing requirements and subsequent amendments thereto as applicable, on the date of submission of tender and at the time of Placement of Contract.

9. CONFLICT OF INTEREST (IF APPLICABLE):

I/We undertake that we shall not make any improper use of information obtained from the Purchaser with intent to gain unfair advantage in the Tender Process or for personal gain including that of our affiliates and that I/we shall suo-moto proactively declare any conflict of interest (coming under the definition mentioned above - pre-existing or as soon as these arise at any stage) in any Tender Process or execution of the contract. I/We understand that failure to do so shall amount to a violation of the code of integrity.

10. I/We declare that I /We have disclosed any previous transgressions of code of integrity with any entity in any country during the last three years or of being debarred by any other procuring entity in our bid documents. Failure to do so would amount to violation of the code of integrity.

11. Acceptance of all the terms & conditions: Participation in this Tender confirms the acceptance of all the terms & conditions by bidder as per Annexures enclosed without any deviation/condition and forms if any attached with tender document.

Seal and Signature of Authorized Signatory

(To be signed by an authorised person on the Tenderer's behalf on Tenderer's Letter head)

PRICE BID FORMAT

For Transportation of materials within factory covering 1 KM distance using tractors with trailer, Manual loading & unloading of materials to/from by tractor with trailer & Stacking and incoming and outgoing of all types of SRCL materials from / to trucks by Manual loading / unloading and by using SRCL Cranes/JCB. (FOR ONE YEAR)

S. No	Description of Work	Qty IN MT	Your offer in Rs excluding all taxes, duties, levies & other charges	
			Rate per MT	Total
1	Transporting of all kinds of SRCL materials within factory covering 1KM distance using Tractor with trailer on Tonnage basis	14300		
2	Manual loading of all kinds of SRCL materials (Lumps/spoils/waste/bags /Scraps/raw material etc) in to tractor trailer on Tonnage basis	14300		
3	Manual Unloading & Stacking of SRCL materials from tractor trailer on Tonnage basis	11700		
4	"MANUAL" Loading/Unloading of all incoming materials and all Outgoing materials on tonnage basis inclusive of Monolithic finished products and except dispatch of finished bricks to / from factory as and when required.	1980		
5	"BY USING OF SRCL CRANE/JCB" Loading / Unloading of all incoming materials and all outgoing materials on tonnage basis inclusive of Monolithic finished products (Jumbo Bags) to / from factory as and when required.	13000		
TOTAL AMOUNT EXCLUDING GST				
GST				
TOTAL AMOUNT INCLUDING GST				

IMPORTANT NOTES:-

- Please read the 'Instruction to Bidders' Scope of Work, Special Terms and Conditions, General conditions of Contract, and Eligibility Criteria in the annexures.
- The rates, taxes/levies applicable a on date & included in the quoted rate above are to be separately indicated below:
- Rates to be filled up strictly as per given FORMAT only.** Rates quoted should be free from errors, etc

CGST	%		SGCST	%		Other levies, if any	%	
	Rs.			Rs.			Rs.	

- The Contract duration shall be 12 months starting from the date of issue of the LOI/ W.O. / Contract. (+/- 25% option for quantity may be considered). However, the discretion as to this will lie solely with SAIL Refractory Company Limited only. This is a TONNAGE RATE CONTRACT. In other words while the Rate per MT for the job work will remain firm for the duration of the Contract. The L1 will be decided on the Total composite value on LCNC basis.

Signature and seal of company

Note: This format to be uploaded only in the Item level page (Part 3- Price bid) and not in the Techno-commercial page. If prices are indicated in the techno-commercial bid, such offers are liable to be rejected.

(Format for EMD)
PROFORMA for BANK GUARANTEE FOR EARNEST MONEY DEPOSIT
(To be submitted in a non –judicial stamp paper of RS .100/-)

(Name of Bank)

To

SAIL REFRACTORY COMPANY
LIMITED, SALEM 636 302.

Dear Sir,

At the request and on behalf of our client, M/s..... and against their tender for..... issued by you, we are establishing this guarantee as Earnest Money Deposit, as required by you under the terms of your invitation to tender.

We, theBank, further agree that if our client commits any breach of the terms and conditions of the said invitation to Tender, we hereby unconditionally and irrevocably agree and undertake to pay to you on demand without protest or demur the amount of Rsbeing Earnest Money required to be furnished under the conditions of the said Invitation to Tender.

We further agree that whether the said M/s.....has committed any breach of the terms and conditions of the said Invitation to Tender or not, your decision in the matter shall be final and binding on us.

Notwithstanding anything herein contained, our liability under this guarantee is restricted to Rs.....(Rupees... ..only).

This guarantee is valid for.....Days from.....

We further agree that this guarantee herein contained shall remain in full force and binding until it is released by you in writing provided always that this guarantee shall on no event remain in force afterwithout prejudice to your claim arising and demand from or otherwise notified to us in writing on or before the said date which will be enforceable against us notwithstanding that the same is in force after the said date.

We, the said Bank, lastly undertake not to revoke this guarantee except with your previous consent in writing.

We further agree that any change in the constitution of your Company or of our client or of ourselves shall not in any way affect this guarantee or discharge our liability herein.

Yours faithfully For and on
behalf of (Name of Bank)

Dated: Thisday of 26

Bid-Securing Declaration

(In lieu of EMD)

Date: *[insert date (as day, month and year)]*

Bid No.: *[insert number of bidding process]*

Alternative No.: *[insert identification No if this is a Bid for an alternative]*

To: *[insert complete name of Public Body]*

I/We*, the undersigned, declare that:

I/We* understand that, according to your conditions, bids must be supported by a Bid-Securing Declaration in lieu of Earnest Money Deposit.

I/We understand that if I/We withdraw or modify our Bids during the period of validity, or if I/We are awarded the contract and I/We fail to sign the contract, or to submit a performance security before the deadline defined in the request for bids document, I/We will be suspended for the period of Six months from being eligible to submit Bids for all future contracts.

I/We* understand this Bid Securing Declaration shall cease to be valid if I am/we are* not the successful Bidder, upon the earlier of (i) the receipt of your notification of the name of the successful Bidder; or (ii) thirty days after the expiration of the validity of my/our* Bid.

Signed: *[insert signature of person whose name and capacity are shown]* In the capacity of *[insert legal capacity of person signing the Bid Securing Declaration]*

Name: *[insert complete name of person signing the Bid Securing Declaration]*

Duly authorized to sign the bid for and on behalf of: *[insert complete name of Bidder]*

Dated on _____ day of _____, _____ *[insert date of signing]*

Corporate Seal (where appropriate)

[Note: In case of a Joint Venture, the Bid Securing Declaration must be in the name of all partners to the Joint Venture that submits the bid.]

****Please delete as appropriate***

PROFORMA BANK GUARANTEE FORM FOR SECURITY DEPOSIT

(To be submitted in a non-judicial stamp paper of Rs.100.00)

(Name of Bank)

Guarantee No. _____

A/C Messrs _____

Date _____ of _____ expiry

Address _____

Limit _____ of _____ liability _____ Rs. _____ (Rupees
_____ only)

Reference _____ Contract _____ No. _____

Date _____

For

(Name of Work)

Sub: **SECURITY DEPOSIT GUARANTEE** Dated: _____

To

SAIL Refractory Company Limited

Salem – 636 302

Dear Sirs,

In consideration of your having agreed under the terms and conditions of Contract
No. _____ Dated _____ made between

_____ (hereinafter referred to as the Contractor)

and, SAIL Refractory Company Limited, Salem – 636 013 (hereinafter referred to as the

Purchaser) for _____ (Specify work)

(hereinafter referred to as the 'said contract') to accept a deed of guarantee as herein provided

for Rs. _____ (Rupees _____

only) in lieu of security deposit to be made by the Contractor for due fulfilment by the said

Contractor on the terms and conditions contained in the said contract, we

_____ (Name of Bank) do hereby covenant and

agree with you as follows:

1. We undertake to indemnify you and keep you indemnified to the extent of Rs.
_____ (Rupees _____ only)
from and against any or all losses, damages, costs, charges and expenses that may be
caused to or suffered by you by reason of any breach or breaches on the part of the
Contractor in due performance of the said contract or fulfillment of any of the terms and
conditions in the said contract and/or stipulations relating thereto in accordance with the
true intent and meaning thereof and in the event of the contractor committing any such
breach or breaches, we shall forthwith on demand pay to you such sum or sums not

exceeding in total the said sum of Rs. _____ (Rupees _____ only) as may be claimed by you as your losses, damages, costs, charges and expenses by reason of such breach or breaches on the part of the Contractor.

2. Your decision as to whether the Contractor has committed any such breach or breaches as aforesaid and the amount or amounts to which you are entitled by reason thereof shall be binding on us and we shall not be entitled to ask you to establish your claim or claims under this guarantee but shall pay the same unconditionally on demand and without demur to the extent aforesaid
3. This guarantee shall take effect immediately and shall remain in full force and effect until it is released by you on application by the Contractor after expiry of the relative guarantee period as provided in the said contract or after expiry of nine months from the date of cancellation of the said contract, as the case may be, and after the Contractor has discharged all their obligations under the said contract and produced a certificate from your Purchase Officer, certifying the due completion of the works under the said contract and submitted a 'No Demand Certificate'. Provided always this guarantee shall in no event remain in force after the date of _____ without prejudice to your claim or claims arisen and demanded from or otherwise notified to us in writing on or before the said date which shall be enforceable against us notwithstanding that the same is or are enforced after the said date. Should it be necessary to extend the period of this guarantee beyond the said date on account of any extension of time being granted by you to the Contractor in respect of completion of the works under the said contract or otherwise we undertake to extend the period of this guarantee on your request till such time as may be required by you.
4. You shall have fullest liberty without affecting this guarantee to postpone for any time or from time to time any of your rights or powers against the Contractor and either to enforce or forbear from enforcing any of the terms and conditions of the said contract and we shall not be released from our liability under these presents by any exercise of your liberty with reference to the matters aforesaid or by reason of any time being given to the contractor for completion of the works under the said contract or any other forbearance, act or omission on your part or any indulgence by you to the Contractor or by any variation or modification of the said contract or any other act, matter or thing whatsoever which under the law relating to sureties would but for the provisions hereof have the effect of so releasing us from our liability hereunder. Provided always nothing herein contained will enlarge our liability hereunder beyond the limit of Rs. _____ (Rupees _____ only) as aforesaid or extend the period of the guarantee beyond the said day of _____ 20__ unless expressly agreed to by us in writing.
5. All compositions and payments that may be received by you from the Contractor or any person, firm or company whomsoever for on account of the Contractor in any way in respect of the said contract shall be regarded as payments in gross and you will be entitled to prove against the assets of the Contractor. Should the Contract be wound up or dissolved or declared insolvent in respect of the whole of the Contractor's indebtedness to you without any right on our part to stand in your place in respect of or to claim the benefit of such composition or payments or any security that may be held by you until you shall have received the full amount of your claims against the Contractor.

6. This guarantee shall not in any way be affected by your taking or varying or giving up any securities from the Contractor or any other person, firm or company on its behalf of by the winding up dissolution insolvency or death as the case may be of the Contractor.
7. In order to give full effect to the guarantee herein contained you shall be entitled to act as if we were your principal debtors in respect of all your claim against the Contractor hereby guaranteed by us as aforesaid and we hereby expressly waive all our suretyship and other rights if any which are in any way inconsistent with the above or any other provisions of this guarantee.
8. Subject to the maximum of our liability as aforesaid this guarantee will cover all your claim or claims against the Contractor from time to time arising out of or in relation to the said contract and in respect of which your demand or notice in writing be received by us before the date of expiry of this guarantee mentioned above.
9. This guarantee and the powers and provisions herein contained are in addition to and not by way of limitation of or substitution for any other guarantee or guarantees heretofore given to you by us (whether jointly with other or alone) and now existing uncanceled and that this guarantee is not intended to and shall not revoke or limit such guarantee or guarantees.
10. This guarantee shall not be affected by any change in our constitution nor shall it be affected by any change in your constitution or by any amalgamation or absorption thereof or there with but will ensure for and be available to and enforceable by the absorbing or amalgamated company or concern.
11. This guarantee during its currency shall not be revocable by us except with your previous consent in writing.
12. We have power to issue this guarantee and the undersigned has full power to sign this guarantee on our behalf under power of attorney dated _____ granted to him.
13. Notwithstanding what is stated hereinabove, our liability under this bank guarantee is restricted _____ to Rs. _____ (Rupees _____ only). This bank guarantee shall remain in force upto _____ (date). Unless a demand or claim is made on us in writing on or before within 6 (six) months from that date, we shall be discharged from all liabilities under this bank guarantee thereafter.

Yours faithfully

For and on behalf of

(Name of Bank)

Dated: This _____ day of _____ 26

LIST OF ELIGIBLE COMMERCIAL BANKS FOR ACCEPTANCE OF BGs

SL.NO.	BANK NAME
STATE BANK OF INDIA AND ASSOCIATES	
1.	STATE BANK OF INDIA
2.	STATE BANK OF INDORE
NATIONALIZED BANK	
3.	ALLAHABAD BANK
4.	ANDHRA BANK
5.	BANK OF BARODA
6.	BANK OF INDIA
7.	BANK OF MAHARASHTRA
8.	CANARA BANK
9.	CENTRAL BANK OF INDIA
10.	CORPORATION BANK
11.	DENA BANK
12.	INDIAN BANK
13.	INDIAN OVERSEAS BANK
14.	ORIENTAL BANK OF COMMERCE
15.	PUNJAB NATIONAL BANK
16.	PUNJAB & SIND BANK
17.	SYNDICATE BANK
18.	UCO BANK
19.	UNION BANK OF INDIA
20.	UNITED BANK OF INDIA
21.	VIJAYA BANK
OTHER PUBLIC SECTOR BANK	
22.	INDUSTRIAL DEVELOPMENT BANK OF INDIA PVT. LTD.
PRIVATE SECTOR BANK	
23.	HDFC BANK LTD.
24.	ICICI BANK LTD.
25.	AXIS BANK LTD.
26.	YES BANK LTD.



सेल रिफ्रेक्टरी कम्पनी लिमिटेड, सेलम
SAIL REFRACTORY COMPANY LTD., SALEM.
 (A Govt. of India Enterprises)
 (A Subsidiary of Steel Authority of India Limited)

MANDATE FORM (for enabling E-PAYMENT)

Dear Sir,

We hereby give our consent to get all our payments through electronic mode i.e. EFT/RTGS/NEFT.

- | | |
|--------------------------|---|
| 1. Name of the Vendor | : SAIL REFRACTORY COMPANY LIMITED |
| 2. Address of the Vendor | : POST BAG NO. 565 SURAMANGALAM,
SALEM, TAMILNADU. |
| Pin Code | : 636 005. |
| IT PAN | : AAQCS7998J |
| GST No. | : 33AAQCS7998J1ZB |
| E-Mail ID | : sreelfin@gmail.com |
| Tel. No | : 0427 – 2341409 |
| Fax No | : 0427 – 2341407 |
| 3. Bank Particulars | |
| a) Bank Name | : STATE BANK OF INDIA |
| b) Branch Name & Address | : SALEM STEEL PLANT CAMPUS
MOHAN NAGAR TOWNSHIP, NEAR GATE NO.2,
SALEM – 636 030. |
| c) Account Number | : 32175149829 |
| d) IFSC Code | : SBIN0005739 |
| e) Account Type | : CURRENT ACCOUNT |

We hereby declare that the particulars furnished are correct and complete.

For SAIL Refractory Company Limited

GM (Finance)
 Signature of the Vendor with seal

For Bank Use :

Certified that the bank particulars furnished are correct as per our record

For STATE BANK OF INDIA

 BRANCH MANAGER, SSP CAMPUS-05739
 Signature of the Bank with seal

Reverse Auction through MJunction

Purchase Cost Reduction Objectives of SRCL

- To achieve this target, SAIL Refractory Company Ltd is adopting the on-Line Reverse Auction (RA) methodology.

Key Features

- This Invitation To Tender (ITT) /Request for Quotation (RFQ) is subject to the general conditions of contract and other terms and conditions detailed herein and in the enclosed annexure.
- Use on-Line Reverse Auction (RA) for price bid evaluation.
- Evaluation of the lowest tenderer (L1) shall be as per Rules & Regulations Governing conduct of On-Line Reverse Auction - Annexure IV-A AND AS PER THE BIDDING STRATEGY ADOPTED BY MJUNCTION SERVICES LIMITED..
- L1 Tenderer to get maximum share of order, if not constrained by capacity /capability (as assessed by SRCL), in case of multiple sourcing and the same shall be guided by SAIL Purchase Contract Procedure-2009 (PCP-24).

HOW TO SUBMIT BID

- The tenderer shall obtain the tender documents **by down loading from SAIL website www.sailtenders.co.in (Plant : SAIL REFRACTORY COMPANY LIMITED) on free of cost.** Tenderers will have to submit the EMD & Techno-Commerical Bid including particulars mentioned in the Eligibility criteria as the first stage.
- Tenderers will have to completely fill up the **Annexures** of the RFQ, as applicable, which are to be signed by their authorized person with their official seal affixed.
- Tenderers will have to submit all the attested / certified copies of the documents called for in this tender document.
- The Price Bid evaluation shall be done through on-line reverse auction over internet in the second stage among the techno-commercially acceptable Tenderers, after assessment by SRCL.
- The tenderer has to submit online Price BID on the EPS portal along with techno commercial bid. SRCL reserves the right to opt for Reverse auction or otherwise.

PRICE BIDDING:

- Tenderers will be required to participate in on-line reverse auction over internet for Price Bidding.
- The schedule and details of the Reverse Auction event shall be communicated in due course by the Service Provider.

SUMMARY OF EVALUATION PROCESS

The bid evaluation process will comprise of two steps:-

- Step-I: Technical/commercial/legal/financial capacity.
- Step-II: Price Bid evaluation by on-line reverse auction over Internet.

Technical/Commercial/Financial/Legal valuation (TCFL):

• The TCFL Evaluation process shall be carried out by a committee as constituted by SRCL. The TCFL evaluation process will comprise of the following steps:

- The TCFL Evaluation Team will scrutinize each Tenderer's bid and decide the acceptance of each item and other technical terms quoted in the RFQ.
- As a part of Commercial evaluation process, the SRCL will verify whether the Tenderers have agreed to the Commercial Terms specified herein.
- In case of any doubts with respect to any point of the Tenderer's Technical & Commercial Bid, clarification may be sought from the Tenderer and in case of non-confirmation **within the specified date**, the bid is liable to be rejected.
- SRCL Shall Classify Tenderer as technically acceptable / unacceptable after evaluating the bids for the stipulated requirements of the Tender.
- In case any specific adverse report is received against a Tenderer, as an information or upon inquiry made by SRCL, in respect of capabilities and performance of the Tenderers, after receipt of tender but before the participation in Reverse Auction, the tender of that Tenderer shall be rejected on the basis of recorded reasons. If such report is received after the Reverse Auction then also, the tender of that Tenderer shall be rejected after recording the reasons.

Price Bid Evaluation

- Price bid evaluation process shall be carried out as indicated in the Rules & Regulations Governing conduct of On-Line Reverse Auction in the **Annexure**.

SERVICE PROVIDER (SP) AND THE ISSUANCE OF RFQ

- SRCL has engaged the services of its Joint Venture Company M/s Mjunction services limited (MJ) for conducting the Reverse Auctions on behalf of SRCL. MJ is fully authorised to give clarifications / coordinate with the suppliers in consultation with SRCL w.r.t conduct of Reverse Auction for appointment of Transporter. Their address is given below:

Corporate Office	Chennai Office
MJunction services limited Godrej Waterside Tower 1, Block DP, Plot-5, 3rd Floor, Salt Lake Kolkata- 700091	MJunction services limited Basement, New No. 91, Old No.44, Armenian Street, Chennai- 600001
Ph : 033 – 66011721 to 1725 Fax : 033 –66011719	Fax : 044-25216536

Contact Persons	
Corporate Office	Chennai Office
Ms. Vani Burra Mobile No. 9163348103 Direct No.033 -66106299 e-mail: Vani.burra@MJunction.in	Mrs. Uma.R Ph: 044 -64624733 to 35 e-mail: uma.r@MJunction.in

- M/s Mjunction Services Limited shall intimate those Tenderers whose Techno-Commercial Bids have been accepted by SRCL to participate in the Reverse Auction on the date as notified by them.
- M/s Mjunction will explain the Reverse Auction process to all the prospective tenderers and clarify issues, if any. It will be the responsibility of the tenderers to get themselves acquainted to their satisfaction with the on-Line bidding process by thoroughly interacting with Mjunction.
- Only SRCL will be empowered to approve any deviations from the ITT/RFQ asked for by the Tenderer. Unless otherwise intimated by SRCL in writing, the tender conditions remains un altered.
- **Vendor Enablement** – MJ shall have the responsibility of familiarizing the tenderers with the Reverse Auction Process (including training to the vendors).
- Rules and Regulations governing the conduct of Reverse Auction and Definition of Key Terms of Reverse Auctions are given in Annexure IV (A) and (B) respectively.

GROUND RULES FOR PARTICIPATION/INFORMATION TO TENDERERS

- Tenderers should provide complete, clear and thorough responses to all information requested in the RFQ document. If any one of the forms attached is not submitted or is incomplete in any respect, the bid is liable to be rejected.

KEYDATES:

- Techno-Commercial Bids, will be accepted upto and will be opened at the time specified in tender document in the office of GM (COMML) or his representative or any other office as directed by him.

SUBMISSION OF BIDS & OTHER INSTRUCTIONS

Tenderers are requested to submit **only the Techno- Commercial Bid as described in the RFQ.**

The Techno-Commercial bid shall not contain prices or any indication of prices, else the offer will be rejected.

Ensuring participation

- To participate in the Reverse Auction from their own office / own arrangement - In such an event the bidder has to make arrangement for ensuring connectivity throughout Reverse Auction. For this option bidder shall be solely and exclusively responsible for ensuring continuance of connectivity. SRCL shall in no way be responsible for the consequences arising out of disruption of connectivity. In case the bidder desires, efforts will be made to provide assistance during the reverse auction phase by deploying

skilled persons from service provider / authorized representative at the participating vendor locations. However, SRCL or Service Provider shall in no way be responsible for ensuring connectivity.

- In case, there is loss of connectivity for a continuous period not exceeding 15 minutes during the last half of an hour of the conduct of Reverse Auction for that particular Market, the period of RA shall be extended by an equal period or more and during which the bidder is connected, otherwise the auction will be called off for that particular Market. **The decision of SRCL in this regard is final and binding.**
- The Tenderers have to confirm through a letter/fax (033-66011725 and also to 0427-2341407), their last quoted prices within one hour of concluding the Reverse Auction as per format furnished by the auctioneer.
- Written Acceptance in-toto to all the Terms & Conditions mentioned in this tender document is a pre-requisite for securing participation in the on-line reverse Auction conducted by M/s Mjunction on behalf of S R C L the products / services above. Hence, the tenderer is requested to sign this document on each page. The tenderer shall also complete the form given for furnishing the details of the person authorized by the firm to participate in the Reverse Auction. The 'USER -ID' and 'PASSWORD' will be given only to this authorized person.

For any clarifications, please contact:

Ms.SatyavaniBurra

Mobile No. 09163348103,

Direct No. 033 66106299

[E-mail: vani.burra@mjunction.in](mailto:vani.burra@mjunction.in)

Fax No: 033-66011725

Ms. R Uma

Tel No. 044- 64624733/34/35

uma.r@MJunction.in

- To be faxed within one hour of concluding the Reverse Auction General Rules and Regulations governing conduct of On-line Reverse Auctions on the MJUNCTION platform and Terms and Conditions of the Buyer(SRCL)

INTRODUCTION

The General Rules and Regulations provided herein govern the conduct of On-line Reverse Auctions operated by Mjunction.com Private Ltd. These rules cover the roles and responsibilities of the parties in the On-line Reverse Auctions on the Mjunction platform.

Acceptance in-tototothese General Rules and Regulations is apre-requisite for securing participation in the On-line Reverse Auctions on the Mjunction platform.

The key terms pertaining to the On-line Reverse Auctions are provided in the Annexure IV - B. Prospective bidders are advised to read through the same.

Role of Mjunction

Mjunction is the agency (operator) primarily providing the forum for conducting the Reverse Auction. As the agency providing the auction engine, the role of Mjunction would include:

- input of the details of the auction items and defining of the bidding rules as desired by

the client, market making and training of prospective vendors

- Providing access to the approved vendors to participate in the auction.
- enhancing tenderer awareness of and comfort with the auction mechanism and bidding rules
- summarizing of the auction proceedings & communicate the outcome to the Client
- The responsibility for fulfillment of the contract rests between the tenderer and the client, and Mjunction shall have no liability on this account.

Role of the Tenderer

The role of the tenderer is outlined below:

- a) The tenderer would participate in the Reverse Auction with the aim of bidding to secure the auctioned item in the auction (being selected for supplying the client's requirement in a Reverse Auction).
- b) The tenderer would be provided access to the Auction through a User Id protected by a password. The tenderer needs to ensure that the User Id and password is not revealed to unauthorized persons.
- c) Access to the auction mechanism shall be provided to all the approved tenderer subsequent to obtaining their written consent to the General Rules & Regulations.
- d) In the event of winning an allotment in the auction mechanism, the tenderer shall commit to fulfill outlined obligations under the contract.

Bidding Rules:

The Bidding Rules refer to the information and terms defined specifically for a particular Reverse Auction. The purpose of the Bidding rules is to provide approved tenderer with the information and terms specific to the auction in which they are bidding. This would include:

- Definition of the unit of bidding Start Time and duration of the Reverse Auction
- Any extension of the duration of the auction in the event of bids being received towards the end of the pre- specified duration
- Reserve Price (if specified)
- Minimum & Maximum Bidding Quantity (if specified)
- Price Decrements and any reduction in the price decrements in the auction in the event of inactivity
- Other attributes (informational/non-negotiable in nature)
- Participation in the auction process presumes complete awareness and understanding of the bidding rules.

Conduct of the Reverse Action

- The Reverse Auction shall be communicated on pre-specified date.
- Mjunction retains the right to cancel or reschedule the Reverse Auction on any of the followings reasons: The number of confirmed tenderers is deemed insufficient to conduct the Reverse Auction Some of the confirmed tenderers are unable to access the module due to infrastructural problems such as sustained power failure or

telecommunication breakdown.

- No bid shall be accepted which is above any start bid price, or
- It is determined that one or more tenderers have submitted bids which are clearly below Cost. If the buyer decides so.
- The duration of the auction may also vary from the pre-specified period of time on account of termination of the auction by Mjunction:
 - a) on the advice of the client or
 - b) on its own accord in case of situations where it is felt that continuance of the auction proceedings is prejudicial to the smooth conduct and/or the integrity of the auction process.

L-1 Definition—As defined in tender documents

Liability of Mjunction

Mjunction shall not be liable to the client/ in the auction or any other person/s for:

- Any breach of contract by any of the parties in the fulfillment of the underlying contract
- Any delays in initiating the On-line auction or postponement/cancellation of the On-line auction proceedings due to any problem with the hardware/ software/ infrastructural facilities or any other shortcomings.

Confidentiality Clause

- Mjunction undertakes to handle any sensitive information provided by the client or confirmed for the Reverse Auctions with utmost trust and confidentiality.

Jurisdiction

- Any disputes relating to the On-line auction module shall be subject to the sole jurisdiction of civil courts of Kolkata only to the exclusion of any other court.

Right of the Client

- SRCL reserves the right to fully/ partly accept the bids or completely reject the same.

Mjunction retains the right to extend or cancel or reschedule the reverse auction on any of the following reasons:

Sl	Circumstance	Action
01	Auto Extension Of Bidding Time	ONLY in the event of any bid being placed in the last 3 minutes of the scheduled bidding time, the bidding time shall automatically extend by 3 minutes from each such bid. This Auto Extension mechanism remains activated until a continuous inactivity period (i.e. no bids being placed by any bidder) of 3 minutes is reached at which

02	Cancellation of event / bid	1. The number of confirmed bidders is deemed insufficient to conduct the reverse auction. 2. On Advice of the Buyer 3. MJ on its own accord - in case of situations where it is felt that continuance of the auction proceedings is prejudicial to the smooth conduct and/or the integrity of the auction process. 4. Cancellation/ premature termination of the reverse auction with/ without a subsequent rerun of the auction on a mutually decided date between Client and MJ. 5. Cancellation of a wrong bid 6. Locking a bidder's account (suspension of operations in the account)
03	Poor Participation	1. Manual extension carried out if less than 10 bids received 2. Reserve / expected price not met. It is determined that one or more bidders have submitted bids which are clearly below Cost 3. On the advice of the Buyer
04	Unable to access the module due to infrastructural problems - Internet Problems being reported by bidders	1. Manual extension carried out till connectivity restored or MJ will bid on behalf of bidder after obtaining suitable authentication. 2. The number of extensions and the time involved in each extension is on the judgment of the auction controller concerned.
05	MJ server not able to connect to the Internet cloud	To the extent possible, all auctions will be extended until the problem is resolved/ internet connectivity of MJ machine improves. Ability to extend depends upon time available, as also ability of MJ staff to connect to the MJ machine.
06	Power failure/ Planned power shutdown in his area reported by an interested supplier	MJ will bid on behalf of bidder after obtaining suitable authentication. (The party will inform his minimum price and will also inform his user id and password) Manual extension may be involved if the call is received just before closure, and MJ staff does not have sufficient time required to make a bid.
At the request of the Client, Mjunction may permit bidding through a combination of online and offline means (offline means including phone/fax/email). However in such event, Mjunction would not be responsible for any errors in transmission or entry of the information received in the offline medium. It must be expressly understood that such facilities if and when extended are only for the convenience of bidders and, while reasonable care and caution shall be taken by Mjunction, the ultimate responsibility for the same shall rest with the bidder/s.		

DEFINITION OF KEY TERMS

Reverse Auction

Reverse Auction refers to a forum where the requirement for one/ more Markets of an item is stated and the participants are required to bid down the price to be selected to supply the requirement.

On-line Reverse Auctions

On-line Reverse auctions refer to those Reverse Auctions conducted through the Internet with simultaneous bidding (from one or more locations). In other words, the venue for the auction is on

an Internet website/ platform. The Mjunction website (<http://www.buyjunction.com/>) or any other URL assigned by Mjunction would constitute the venue for the purpose of the On-line auction.

Award at the Reverse Auction

The tenderer quoting the lowest price is normally allotted the item unless otherwise specified by the Client.

Client

Client is the individual/business entity who has contracted Mjunction to conduct such Reverse Auction. In case of Reverse Auction, the purpose would be to meet their requirement for item/s from among the sellers desiring to sell the items to the Client.

Tenderer

Tenderer is the individual/business entity participating in the Reverse Auction, intending to supply the item/s to the Client. To become a Tenderer in the auction, a business entity has to secure client approval for participation and also provide written assent to the General Rules and Regulations

Auction Engine

Auction Engine refers to the software that encapsulates the entire auction environment, processing logic and information flows. Mjunction is the sole owner of the auction engine and retains exclusive right over the utilization of the same.

Preview Time

Preview Time refers to the period of time that is provided prior to the commencement of bidding. This is to facilitate approved participants to view the auction details such as item specifications, bidding details and bidding rules. The purpose is also to familiarize participants with the functionalities and screens of the auction mechanism. It is not mandatory for Mjunction to provide Preview Time.

Start Time

Start time refers to the time of commencement of the conduct of the On-line auction. It signals the commencement of the Price Discovery process through competitive bidding.

Duration of the Reverse Auction

It refers to the length of time the price discovery process is allowed to continue by accepting bids from competing tenderers. The duration of the auction would normally be for a pre-specified period of time. However, the bidding rules may state the conditions when the pre-specified duration may be extended/curtailed. The conditions include:

- Curtailment of auction duration in the event of no bids for a specified period of time (Inactivity Time)
- Automatic extension in the event of bids being entered towards the end of the scheduled duration to facilitate the other tenderers to view and react to the bid.

Auto Extension of the Auction Timings

In the event of bids in the last few minutes of the scheduled bid time, the Bid Timings are automatically extended for a specified period from each such bid. Such Auto Extension shall continue until no bids are placed for the specified period (Engine remains inactive for the specified Period). The Inactivity Time for Auto Extension purpose is normally 3 minutes. Mjunction however retains the right to change the same in consultation with SRCL. The Inactivity Time applicable for the particular On-Line Bid shall be communicated to the tenderer if it will be set to a value less than 3 minutes.

End of the Reverse Auction

End of the Auction refers to the termination of the auction proceedings signaling an end to the price discovery process.

Auction Report

Mjunction would provide an Auction Report to the Client containing a summary of the auction proceedings and outcome. The Auction Report would constitute the official communication from Mjunction to the client about the outcome of the Reverse Auction.

ID and Pass Word - Pass Word and ID shall be given to all the eligible vendors by the Service Provider for enabling the vendor to participate in the Reverse Auction.

Start –Bid Price – Start Bid Price is the estimated Price of a lot decided by lowest of Online Sealed Bids. This is the Maximum Price, which will be accepted by the Reverse Auction engine. Supplier have to quote a price lesser than the Start Bid Price for participating in the Reverse Auction. The computer shall not accept Price higher than Start Bid Price for a lot. Bidding will start at start Bid Price to be intimated in advance to the vendors eligible for bidding. This will be put up on the site and will also be communicated in advance through Fax/ email.

Minimum Decrement - Minimum decrement is the minimum amount a supplier has to reduce in order to beat a higher bid. For example, if a tenderer bids Rs 10,00,000/- for a Market, others, in order to beat this bid, have to quote a lower price with a minimum decrement say of Rs 100/- i.e. in order to be eligible they have to quote Rs. 9,99,900/- (or lower) for the same Market. This minimum decrement shall be pre-decided by SAIL Refractory Company Limited and will be in-built and displayed in the computer.

PROXY BID - In the following circumstances, a tenderer may opt for proxy bidding.

Where the tenderer is not confident of a reliable Internet Connectivity

Where the speed of Internet Connection is slow and unable to catch-up with the speed of competitor's bids.

To remain a leading tenderer till the lowest bid value fed in the auction machine.

Where the tenderer is required to put bids in more than one Market/Lot at a time Following is the outcome when a tenderer exercises the proxy option:

A proxy bid remains L1 till the lower bid value fed in the auction machine is exhausted i.e. a lower bid, less than the lower bid value offered by the tenderer exercising the proxy, is offered by another tenderer. If a tenderer bids a price equal to the lower limit of the proxy bid, the proxy tenderer gets precedence over him at that price.

To let the system place bids on your behalf you need to check (click) the proxy bid box on the bidding details page and place the lowest value to which you can bid and then place submit button and confirm. Once the proxy is activated the bids are placed automatically as per the minimum decrements. The lowest value of your proxy bid amount is not visible by any other tenderer.

Example: Suppose, the current bid in the market is Rs.10000 and the min. decrement is Rs.100 and you have activated proxy till Rs.9500. Now say a tenderer places a bid of Rs.9800, the system automatically bids Rs.9700 on your behalf at the same time and keeps you as a leading tenderer.